

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

December 10, 2012

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Mr. Allen, Ms. Ash, Mr. Brown, Ms. Broyles, Mr. Collins, Mr. Pierson, Dr. Rinne, Mr. Spiker and Mr. Valdez. Also present: Carol Intlekofer, City Clerk; Lois Huff, City Treasurer, and Dan White, City Attorney.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Upon request by Mr. Collins, and pursuant to support received by Mr. Pierson and Dr. Rinne, agenda item #24(c) was removed from the Consent Agenda. Upon request by Ms. Broyles, and pursuant to support received by Mr. Collins and Mr. Pierson, agenda item #12 was removed from the Consent Agenda. Mr. Collins moved to approve remaining Consent Agenda items, seconded by Mr. Brown. Motion carried. Voting "yes" -- all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on November 26, 2012. Motion (per Consent Agenda) carried.

Mr. Brown declared a conflict of interest (business interest in voucher payable to Ameri-Tech HVAC Services) and vacated Council Chambers. Mr. Valdez moved to approve payment of vouchers as presented, seconded by Mr. Pierson. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Brown returned to Council Chambers.

Mayor Kaysen opened a public hearing to receive comments and input for a Bar and Grill liquor license application filed with the City Clerk's office for The Suite, LLC d/b/a The Suite, 1901 Central Avenue, Cheyenne, Wyoming. Upon inquiry, Carol Intlekofer, City Clerk, clarified the current licensee at the premises is a different business entity than this applicant and has been operating under a Bar and Grill liquor license. She stated that if this application is approved, The Suite, LLC will be issued a new Bar and Grill liquor license and the current license for the site will be returned to the City, keeping the same number of available Bar and Grill liquor licenses (i.e. 3). Ms. Intlekofer advised The Suite, LLC is a new restaurant operation. There being no further comments and the purpose of the hearing having been met, Mayor Kaysen closed the hearing and referred the application to Finance Committee.

Mr. Collins moved to change the order of the agenda to bring forward the ordinance pertaining to granting of a franchise to High West Energy, Inc. before the ordinance pertaining to

granting of a franchise to Cheyenne Light, Fuel and Power Company, noting that action that may be taken on the High West Energy franchise may affect discussion and action on the item involving the Cheyenne Light, Fuel and Power franchise, seconded by Ms. Ash. In response to a procedural inquiry, Dan White, City Attorney, reviewed provisions of Robert's Rules of Order relative to the motion and customary and usual practices of the governing body, and advised if there was no objection from City Council members, the motion was procedurally in order. Following inquiry by Mayor Kaysen and with no objection raised by City Council members, motion carried. Voting "yes" -- all members of the governing body.

ORDINANCE - Granting a Franchise by the City of Cheyenne to High West Energy, Inc., its successors and assigns, the right to furnish, sell and distribute electricity to the City and to all persons, businesses, and industry within a portion of the City in High West's Certificated Territory and the right to acquire, construct, install, locate, maintain, operate and extend into, within and through said City all facilities reasonably necessary to furnish, sell and distribute electricity within the City and the right to make reasonable use of all streets and other public places and public easements as herein defined as may be necessary; and fixing the terms and conditions thereof. Upon request by Mayor Kaysen, a brief informational review of the process that resulted in the proposed ordinance, as well as the proposed ordinance for granting a franchise to Cheyenne Light, Fuel and Power Company (CLFP), was provided by Dan White, City Attorney. Mr. White also discussed the following five topics affiliated with both of the proposed franchise ordinances: Franchise fees; relationship between the proposed franchise ordinance for CLFP and its request for reimbursement from the City, under current franchise provisions, for recently discovered overpayments of certain customers' franchise fees; main issue of whether the City wants to franchise another provider (i.e. High West Energy) for electric services within the City; proposed agreement between CLFP and High West Energy (HWE) regarding the division of service territories, creating essentially a non-competition concept, and benefits of having the division of territories approved by the Public Service Commission (PSC), and rate regulation regarding "fairness" issues relative to HWE's rates not being subject to regulation by the PSC, and CLFP rates being subject to regulation by the PSC. During his comments, Mr. White advised that legal staff would probably be proposing an amendment for each ordinance to clarify what "approval" means with regard to the PSC and service territories as contained in the concluding paragraphs of the ordinances. Brian Heithoff, general manager, High West Energy, Inc., stated that HWE currently serves 14 accounts within the City limits; provided a brief overview of the company's organizational structure, office locations and sites served, and advised rates are set and regulated by a Board of Directors. He noted that HWE wishes to serve future annexed areas to the City within its certificated territory, and that the company is able to serve additional customers. Reporting for Finance Committee, Mr. Brown moved to approve on second reading, seconded by Mr. Pierson. Mr. Brown moved to amend by substitute ordinance, which includes the amendment made at the Dec. 3, 2012 Finance Committee meeting that removes the proposed franchise fee increase, seconded by Mr. Spiker. Dale Steenbergen, Greater Cheyenne Chamber of Commerce, spoke in opposition to any franchise fee increases at this time, referencing the need to keep local taxes low, the effect of increases on community businesses and economic development competitiveness, noting a letter dated Dec. 10, 2012 from Cheyenne LEADS that had been submitted on the topic of economic expansion considerations (on file with office of City Clerk). Discussion followed and included the following topics: Comments in support as well as non-support of the proposed amendment; franchise fees assessed by other Wyoming and regional municipalities;

purpose of franchise fees; fees as a “pass through” charge to ratepayers; City street and right-of-way maintenance expense concerns; limited City revenue generation options available pursuant to state statutes; proposed incremental fee increases over the 25 year term of the franchise ordinance; past revenue amounts received by the City pursuant to the current franchise ordinance with CLFP; capability of “re-opening” the franchise ordinance fee provision to potentially amend (increase) fees in the future if desired; unknown stability of the utility market involving costs for services; other increased costs to consumers (ex: fuel); incremental franchise fee increases, and number of current HWE customers within the City with future customers affiliated only with new annexed areas. During discussion and upon inquiry, clarification was made of the motion on the floor, which would amend HWE’s franchise fees to be 3 percent for the entire franchise term with no incremental increases. Upon inquiry, Lois Huff, City Treasurer, advised franchise fees received are credited to the general fund. Motion to amend by substitute failed. Voting “yes” -- Ms. Ash, Dr. Rinne and Mr. Spiker. Voting “no” -- Mr. Allen, Mr. Brown, Ms. Broyles, Mr. Collins, Mr. Pierson, Mr. Valdez and Mayor Kaysen. Pursuant to inquiry, Mark Stege, Vice President of Operations, Cheyenne Light, Fuel and Power Company, briefly reviewed the history of discussions and negotiations between CLFP and HWE pursuant to previous request by the governing body, and a proposed settlement agreement involving service territories for each entity to be approved by the governing body and the PSC, and noted that CLFP has no objection to the City granting a franchise to HWE. Discussion followed on past requests by HWE for a City franchise; concerns with community growth and customers being served by two providers with differing rates and policies; unknown dependability of HWE’s services; rate setting approval and regulations by a private Board of Directors vs. the PSC; issues of fairness; rural vs. urban lifestyles and conditions; entity partnerships and community contributions, and providing HWE the opportunity to provide services within its certificated area. Questions arose concerning certain sections of the proposed ordinance, applicable to both HWE and CLFP franchise ordinances, regarding whether the ordinance, if approved on final reading, could be amended or terminated in the future as noted in Section 14.1, Forfeiture, of the ordinance; clarification regarding waiving of City building permit fees as outlined in Section 3.5, Franchise Fee Payment in Lieu of Other Fees and Charges, and Section 4.5 (b) relative to abandoned facilities and further legal review of what would be required for an abandoned facility to be removed at the cost of the franchise service provider. In response to the questions raised, Mr. White expressed his legal belief that Section 14.1 of the ordinance, considered to be a contract, provides for termination only for cause, such as failure of the franchisee to fulfill provisions contained in the ordinance. He stated as Section 3.5 begins with the phrase “... In connection with the operation of facilities to furnish, sell and distribute electricity within the City ..”, if the franchisee is constructing a building structure all of the regular permit fee requirements would apply, noting additional clarification to this section could be done if needed. Upon query and there being no objection voiced by City Council members, Mayor Kaysen requested a representative for HWE and CLFP each provide their interpretation of what the word “abandoned” meant to their respective company operations with respect to Section 4.5 (b). Mr. Heithoff stated abandonment to them means that when they have a service location that is no longer used for a period of time and there’s no real future use for the service, it would be removed, and clarified, upon inquiry, that measures would be taken so the property would not pose any safety concerns. Randy Leinen, Director of Operations, CLFP, stated delving deeper into what abandonment means may be needed, and cited an example of a former physical building facility within the City that the company had vacated and had subsequently made drainage and other property improvements to alleviate abandonment conditions. He noted that abandonment could also

mean a service line that is no longer used or has failed, advising in many instances CLFP won't dig up a City street to remove an underground line as damage would be more expensive than leaving the line in place. It was noted that an abandoned service line scenario is different than an abandoned physical (building) facility. Pursuant to inquiry, Mr. Heithoff provided information on the following: Composition of HWE's Board of Directors (seven members with each Director representing a geographically located district which currently includes the areas of Cheyenne, Hillsdale and PineBluffs, WY; Hereford, CO, and Kimball and Potter, NE); Board delegation of authority of some areas of operations to Mr. Heithoff with other areas, including customer rate issues, being the Board's responsibility; fairness issue; current customers within the City wishing to continue with services provided by HWE; class of service type and amount of energy used as factors in determining fees, and the company's reliability record. During discussion, question was raised on whether the governing body has the legal authority to make a final decision on which entity (i.e. HWE or CLFP) could provide service to a specific area that was annexed in the future. Mr. White expressed his understanding that if the agreement between HWE and CLFP is approved, both by the City Council for the issuance of dual franchises and then by the PSC, and a future annexation(s) occurs, those customers in the annexed area would have to be served by the entity approved by the PSC for that certificated area and that the governing body, on its own, does not have decision-making authority to change each entity's approved service area without consent of the PSC. He added his further understanding that the PSC, as a matter of law, retains jurisdiction to alter certificated territories. Randy Reed, legal counsel for HWE, stated the statutes regarding the topic are less than a "model of clarity" and expressed HWE's position that the City does have and retains authority to determine what electric utilities operate within its corporate boundaries under home rule (state constitution) and state statutes. He further noted that Section 14.3 of the franchise ordinance indicates the City retains all legal remedies that it would otherwise have under law, and that he believes one of those remedies would be the right to repeal the franchise ordinance. John Sundahl, attorney for CLFP, stated a franchise ordinance is a contract between the parties and if, for example, a franchisee has a vested financial interest and provides services within its certificated area, it was his belief that the City could not revoke/terminate the franchise, commenting that potential legal liability to the City could occur. He also indicated if the governing body wanted to address the right to revoke or terminate, it should be more specifically worded in the franchise ordinance for review by PSC. He expressed his opinion that the PSC has continuing jurisdiction, and advised that he wouldn't rely on the ability of the City to take back a franchise once granted. Motion to approve the ordinance on second reading failed (due to a tie vote). Voting "yes" -- Ms. Ash, Mr. Brown, Ms. Broyles, Mr. Pierson and Mr. Valdez. Voting "no" -- Mr. Allen, Mr. Collins, Dr. Rinne, Mr. Spiker and Mayor Kaysen. Following announcement of the vote, Mr. Brown raised a point of order requesting procedural clarification pertaining to the future status of the agenda item due to the motion failing. Mayor Kaysen advised the item, pursuant to the current meeting's process, will not be moving forward for further review or action at either the next Finance Committee meeting or the next City Council meeting.

ORDINANCE - Granting a Franchise by the City of Cheyenne to Cheyenne Light, Fuel and Power Company, its successors and assigns, the right to furnish, sell and distribute electricity to the City and to all persons, businesses, and industry within a portion of the City in Cheyenne Light, Fuel and Power Company's Certificated Territory and the right to acquire, construct, install, locate, maintain, operate and extend into, within and through said City all facilities reasonably necessary

to furnish, sell and distribute electricity within the City and the right to make reasonable use of all streets and other public places and public easements as herein defined as may be necessary; and fixing the terms and conditions thereof. Upon confirmation by Dan White, City Attorney, Mayor Kaysen advised that information provided and issues discussed by Mr. White prior to discussion on the previous agenda item pertaining to the franchise ordinance for High West Energy (HWE) also applied to this item. Mark Stege, Vice President of Operations, Cheyenne Light, Fuel and Power Company, explained the Nov. 20, 2012 filing for a new franchise agreement involves an electrical services franchise only and, if approved by the governing body, then filing for a natural gas franchise would follow. He requested approval of the ordinance and reviewed examples of the company's assistance over the years with local economic development efforts; commented on CLFP's service reliability; noted improvements and projects the company has completed, as well as current and future projects and investments in the community, to provide for the future supply of electricity and natural gas, and stated the company has been a community partner for 130 years. Mr. Brown moved to approve on second reading, seconded by Mr. Valdez. Mr. Brown moved to amend by substitute ordinance, which includes the amendment made at the Dec. 3, 2012 Finance Committee meeting that removes the proposed franchise fee increase, seconded by Mr. Spiker. Dale Steenbergen, Greater Cheyenne Chamber of Commerce, commented in opposition to a significant increase in tax burden on businesses, total tax areas affecting businesses, the need to have the ability to compete with recruitment of businesses with regard to economic development, and concern with a 25 year commitment to increased taxes under the proposed franchise term. Sam McKeown, Norco, Inc., expressed his belief the City has become, over time, more regressive toward business, and spoke in opposition to any increased costs to businesses and current economy concerns. Mayor Kaysen thanked Mr. McKeown for his email comments received earlier in the day (on file with office of City Clerk). Discussion followed on the amount of revenue the City has received over the past 20 years in franchise revenues from CLFP, support as well as non-support for the proposed amendment and new franchise ordinance generally, and status of the current CLFP franchise ordinance if the proposed ordinance should fail. Upon inquiry, Mr. White advised if the proposed ordinance fails, the current franchise ordinance (Ordinance No. 3146) would remain in effect. Motion to amend by substitute carried. Voting "yes" -- Ms. Ash, Mr. Brown, Mr. Collins, Dr. Rinne, Mr. Spiker, Mr. Valdez and Mayor Kaysen. Voting "no" -- Mr. Allen, Ms. Broyles and Mr. Pierson. In response to inquiry, Mr. Stege verified expiration date of the current franchise ordinance is Dec. 31, 2016, and clarified CLFP was seeking a new agreement at this time due to HWE's request for a franchise ordinance and the desire to have concurrent agreements between the two utility entities, and was also due to CLFP's significant investment in its new Cheyenne generation substation relative to a new long term franchise agreement. It was noted that CLFP started its process for the new generation substation approximately 1 ½ years ago. Main motion to approve the ordinance, as amended, on second reading failed. Voting "yes" -- Mr. Collins, Mr. Spiker and Mr. Valdez. Voting "no" -- Mr. Allen, Ms. Ash, Mr. Brown, Ms. Broyles, Mr. Pierson, Dr. Rinne and Mayor Kaysen.

ORDINANCE - Pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts Established and Section 5.1.3 Official Zoning Map (Cheyenne City Map), of the Unified Development Code, changing the zoning classification from MR-1 Medium Density Residential - Established District to MUB Mixed Use with Business Emphasis District for Lots 30 and 31, Block 1, Eastridge, Cheyenne, Wyoming (located at the northwest corner of the intersection of East Pershing Boulevard and Converse Avenue). Frank Cole spoke in opposition to placing apartments,

a business or a parking area on the lots, and suggested a pocket park would be better suited for the location. Reporting for Public Services Committee, Ms. Ash moved to approve on second reading, seconded by Mr. Collins. Upon inquiry, Nathan Beauheim, Assistant City Engineer, stated the intent for use of the property is to construct a parking lot and then the City hopes to trade the land for property at the former Hollywood Video site in conjunction with the roundabout to be constructed in the area. Motion carried. Voting "yes" -- all members of the governing body.

Following a ten minute recess, Mayor Kaysen reconvened the meeting at 8:22 p.m.

ORDINANCE - Pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning Map of the Unified Development Code, changing the zoning classification from P Public District to CBD Central Business District for Lot 1, Block 1, 2100 Pioneer Subdivision, Cheyenne, Wyoming (located at 2100 Pioneer Avenue) -- referred to Public Services Committee (sponsor - Ms. Ash).

RESOLUTION - Authorizing the City Treasurer to discharge uncollectible debts in the amount of \$247,178.18, pursuant to Wyo. Stat. §16-4-502. Mr. Brown moved to adopt, seconded by Mr. Valdez. Upon inquiry regarding procedures utilized in collecting debts and whether the debts to be discharged could continue to be collected if the resolution was adopted, Lois Huff, City Treasurer, clarified even though the debts would be written-off, the City can continue to pursue collection for payment. She reviewed collection efforts by staff and stated revised collection procedures are being reviewed, noting implementation of a new accounts receivable system will assist with better tracking and querying capabilities. Upon inquiry, Dan White, City Attorney, advised asserting liens against property is governed by state statute and careful review would be needed to determine whether that could be utilized, and stated once an uncollectible is sent to the City's collection agency, the City can't take it back unless the agency agrees. Upon additional inquiry during discussion, Mr. White advised he has been researching the law to determine whether the list of debtor names can be published in the future. Discussion topics included: Bulk of uncollectibles due to charges at the landfill and sanitation; age of accounts on the list proposed to be discharged; debt accumulation under different personal or business names, and revised collection procedures per Ms. Huff's comments. Ms. Huff provided information on the measures that may be instituted to assist with reduced future uncollectibles, and the aggregate amount of uncollectible debt for the past few years. Upon inquiry, Mayor Kaysen clarified internal review for the collection of unpaid debts is under way and the criteria for future collection efforts will be changing. Motion carried. Voting "yes" -- all members of the governing body. (#5450)

[CA] RESOLUTION - Re-appropriating the Fiscal Year 2013 budget of the City of Cheyenne according to the provisions of W.S. §16-4-112 and 16-4-113 -- referred to Finance Committee (sponsor - Mr. Brown).

[CA] RESOLUTION - Designating local banks as depositories for municipal funds -- referred to Finance Committee (sponsor - Mr. Brown).

[CA] RESOLUTION - Designating the Sundays during 2013 that annual liquor licensees may extend dispensing room hours of operation for sales until 2:00 a.m. the following day -- referred to

Finance Committee (sponsor - Mr. Brown).

[CA] RESOLUTION - To name the parking structure located between Carey and Pioneer Avenues and 16th and 17th Streets in the City of Cheyenne as the “Jack R. Spiker Downtown Parking Structure” -- referred to Public Services Committee (sponsor - Mr. Collins).

[CA] RESOLUTION - Certifying that the Governing Body of the City of Cheyenne has agreed upon the Laramie County Projects to be submitted to the State Loan and Investment Board for the February 2013 meeting for Countywide Consensus Block Grant Funding in the amount of \$721,407.86 -- referred to Finance Committee (sponsor - Mr. Collins).

[CA] RESOLUTION - Certifying that the Governing Body of the City of Cheyenne has agreed upon the Town of Pine Bluffs Projects to be submitted to the State Loan and Investment Board for the February 2013 meeting for Countywide Consensus Block Grant Funding in the amount of \$161,000 -- referred to Finance Committee (sponsor - Mr. Collins).

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to sign a County Final Plat for Swan Ranch Rail Park, 6th Filing, a portion of Sections 22, 23 and 27, T.13N., R.67W., 6th P.M., Laramie County, Wyoming (located west of Clear Creek Parkway, south of Overland Trails Business Park Subdivision) -- referred to Public Services Committee (sponsor - Ms. Ash).

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to sign a County Final Plat for Trinity Estates, a portion of the W½SE¼, Section 1, T.14N., R.67W., 6th P.M., Laramie County, Wyoming (located east of and adjacent to I-25, north of Riding Club Road) -- referred to Public Services Committee (sponsor - Ms. Ash).

[CA] RESOLUTION -Authorizing the Mayor and the City Clerk to sign a County Final Plat for Arp Elementary School, 1st Filing, a replat of Lots 1 and 12, Block 3, Niobrara Energy Park, and a portion of the SW¼ of the NW¼ of Section 9, T.13N., R.66W., 6th P.M., Laramie County, Wyoming (located east of and adjacent to Reiner Court, between Hinkley Drive and E. Allison Road) -- referred to Public Services Committee (sponsor - Ms. Ash).

[CA] RESOLUTION - Authorizing the Mayor and City Clerk of the City of Cheyenne to enter into an agreement for the trade of real property owned by the City of Cheyenne to Christensen’s, Inc., a Wyoming corporation, described as a parcel of land generally located west of Cribbon Avenue near the intersection of Cribbon Avenue and West 28th Street, consisting of approximately 8,451 square feet (estimated value of \$30,000.00), and payment of cash consideration in exchange for real property owned by Christensen’s, Inc., consisting of approximately 52,990 square feet (estimated value of \$188,100.00), generally located west of Cribbon Avenue near the intersections of Cribbon Avenue and Talbot Court and Dodge Court, Cheyenne, Wyoming -- referred to Finance Committee (sponsors - Mr. Allen, Ms. Ash, Mr. Valdez).

[CA] Preliminary Plat for Okie Addition, First Filing, a portion of Section 28, T.14N., R.67W., 6th P.M., Cheyenne, Wyoming (located at the northeast corner of the intersection of E. Pershing Boulevard and Windmill Road) -- referred to Public Services Committee.

[CA] Agreement between the City of Cheyenne, Public Works Department, and KONE, Inc. for maintenance service on various elevators in City buildings. Motion (per Consent Agenda) carried. (#5930)

[CA] Community Based Family Support and Preservation Grant Contract between the City of Cheyenne, Youth Alternatives, and the Wyoming Department of Family Services, Protection Services Division, to provide in-home support and mentoring services to under-served families and strengthen the ability of parents to provide care for their children. Motion (per Consent Agenda) carried. (#5931)

Professional Services Agreement between the City of Cheyenne, Public Works Department, and Solid Waste Professionals of Wyoming, for Happy Jack Landfill Expansion and closure of existing cells (Solid Waste Management fund). Mr. Brown moved to approve in an amount not to exceed \$1,683,483.40, seconded by Mr. Collins. Comments followed in support of the agreement to address landfill issues for the future. Upon inquiry, Jim Elias, Public Works Director, advised he is hopeful a portion of the new cells will be operational by Sept. 2015, noting that estimated date would coincide with the end date of the solid waste contract involving the Ault, CO site. He also provided further information on the landfill project, including the anticipated maximum life expectancy of the new cells and potential funding through the State Revolving Loan Fund program, stating the project will be completed in phases. Upon inquiry, Mr. Elias stated there may be other possibilities for the future and other options are continually being reviewed with regard to the issue of solid waste. Mayor Kaysen added that future technology may also present an opportunity to pursue reduced landfill costs. Motion carried. Voting "yes" -- all members of the governing body. (#5932)

[CA] Agreement between the City of Cheyenne and The Lamar Companies, Baton Rouge, Louisiana, for placement of billboard advertising signs -- referred to Finance Committee.

[CA] Grant Award Agreement between the City of Cheyenne and the Wyoming Office of Homeland Security for a grant in the amount of \$100,000 for the City of Cheyenne Fire and Rescue Department (Region 7 State Regional Emergency Response Team) -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne, Office of Youth Alternatives, and Laramie County, Wyoming, for juvenile probation services -- referred to Finance Committee.

[CA] Consideration of Bid #R-5-13 for furnishing one new brush chipper for the Forestry Division from Vermeer Colorado, Commerce City, Colorado (2011- 2014 1% Sales Tax). Motion (per Consent Agenda) carried (amount not to exceed \$37,004.00 with trade-in).

[CA] Consideration of Bid #R-12-13 for furnishing one new aerial platform fire apparatus and small equipment for the City of Cheyenne Fire & Rescue Department (State Loan and Investment Board grant, 2011- 2014 1% Sales Tax). Motion (per Consent Agenda) carried (accept bid submitted by Front Range Fire, Frederick, CO; amount not to exceed \$1,061.882.00 with trade-in).

[CA] Consideration of Bid #R-6-13 for furnishing one new 2012-2013 airless truck mounted paint striping machine for the Traffic Division (2011-2014 1% Sales Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #R-15-13 for furnishing 120 portable radios, installing one vehicular charger and trading in 120 surplus Motorola portable radios for the City of Cheyenne, Police Department (1% Specific Purpose Sales & Use Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #R-9-13 for furnishing one new 2013 rubber tire front end loader and trading in one salvaged 2004 Caterpillar 924G for the City of Cheyenne, Sanitation and Landfill Divisions (Solid Waste Management fund & insurance) -- referred to Finance Committee.

[CA] Diagonal Parking Permit application filed with the City Clerk's office by Chaplin Park Development Group, LLC, requesting approval of implementation of diagonal parking spaces along Dey Avenue in association with the renovation of the historic Chaplin School project -- referred to Public Services Committee.

Appointments of Tyler Bedwell, Savannah Brown, Jon Chenchar, Alex Cole, Kadi Davis, Ian Dome, Juliette Givhan, Alex Farkas, Addie Fleming, John Matsen, Margarita Medrano, Rachel Moseley and Jacob Peterson to the Mayor's Youth Council. Mr. Allen moved to approve, seconded by Mr. Collins. Voting "yes" -- all members of the governing body with the exception of Mayor Kaysen who did not vote (Mayoral appointments).

Announcement was made that due to the Christmas holiday, the December 24, 2012 regularly scheduled meeting of the Governing Body will instead be held on Thursday, December 20, 2012 beginning at Noon in City Council Chambers. Finance and Public Services Committees will be held at their usual times, 11:00 a.m. and 12:00 p.m. respectively, on Monday, December 17, 2012 and Tuesday, December 18, 2012 in Room 122, Municipal Building.

Announcement was made of the Appointments of Victoria J. Fry, Megin Rux and Fred Lacey III to the Cheyenne Historic Preservation Board, and Dr. Brad Kincheloe to the Cheyenne Laramie County Board of Health, to be confirmed December 20, 2012.

Announcement was made of the Re-appointments of Randy Byers, Bob Clary and Michael Peel to the Building Code Board of Appeals; Tony Adams and Ann Redman to the Personnel Commission; Kurt Zunker to the Fire Civil Service Commission; Cindy Pomeroy to the Police Civil Service Commission; Don Threewitt and Kelly Buchhammer to the Cheyenne Historic Preservation Board; Maynard J. Richmeier to the Cheyenne Housing Authority; Ted Gertsch, Leland G. Clabots and Carol Wurdemann to the Housing & Community Development Advisory Council, and Michael O'Donnell to the Board of Adjustment, to be confirmed December 20, 2012.

Announcement was made of a Public Hearing to be held December 20, 2012 at 12:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, for the purpose of receiving public comment on the proposed trade of real property owned by the City of Cheyenne, being a parcel of land on the west side of Cribbon Avenue near the intersection of Cribbon Avenue and West

28th Street. The proposed parcel to be traded for real property owned by Christensen's Inc., situated along Cribbon Avenue near the intersections of Cribbon Avenue and Talbot Court and Dodge Court.

Under other business:

Mayor Kaysen advised of an additional item for the agenda due to timeliness involved with the item and requested Carol Intlekofer, City Clerk, read the title of the item as follows: Wellness Services Agreement between the City of Cheyenne and WINhealth Partners for WINhealth Partners Wellness Program services. Mayor Kaysen referred the item to Finance Committee.

Brad Harrington referenced past comments made at previous City Council meetings regarding concerns with [United Nations] Agenda 21 by himself and governing body members, noting a recent public meeting that had been held organized by future County Commissioner M. Lee Hasenauer. He reviewed communications with governing body members since those meetings, and expressed he would like to move forward with discussion on his concerns regarding freedoms and individual rights. Mr. Harrington challenged the mayor to a public debate on the topic, and extended an invitation to governing body members to attend. Mayor Kaysen advised that the request has been noted.

There being no further business to come before the governing body, the meeting was officially adjourned at 8:56 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

Published: Wyoming Tribune-Eagle
December 20, 2012